

Calendar Line 11

Case Name: *Kevin Anguka v. Timothy Cook, et al.*

Case No.: 25CV472876

This is a shareholder derivative complaint for breach of fiduciary duty.

Before the Court is Defendant Apple Inc.'s ("Apple") motion to seal portions of Plaintiff Kevin Anguka's complaint, which is unopposed.

As discussed below, the Court GRANTS Apple's motion to seal.

IV. MOTION TO SEAL

A. Legal Standard

"The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d).) Pleadings, in particular, should be open to public inspection "as a general rule," although they may be filed under seal in appropriate circumstances. (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 104, fn. 35.)

"Courts have found that, under appropriate circumstances, various statutory privileges, trade secrets, and privacy interests, when properly asserted and not waived, may constitute overriding interests." (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn. 3 (*Providian*).) Confidential matters relating to the business operations of a party may be sealed where public revelation of the information would interfere with the party's ability to effectively compete in the marketplace. (See *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1285–1286.)

"A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing." (Cal. Rules of Court, Rule 2.551(b)(1).)

B. Discussion

Apple moves to seal portions of the Complaint because it contains confidential commercially sensitive information, including its board records and sensitive financial information. (Motion, p. 2: 3-6.)

Apple argues it has an overriding interest in sealing the confidential information referenced in the Complaint. (Motion, p. 3:9-10.) The information includes non-public, commercially sensitive business and financial information, including board materials reflecting strategic business decisions and communications by Apple's Board of Directors regarding business and legal matters. (Motion, p. 3:15-19.) It further argues that its overriding interest will be prejudiced if the redacted information is not sealed. (Motion, p. 4:19-20.) Specifically, disclosure of the redacted information could harm Apple's competitive position by providing insight into internal Board deliberations regarding business and legal matters. (Motion, pp.

4:27-5:1-2.) Apple further contends that the redactions are narrowly tailored, and no less restrictive means exists to protect the overriding interest. (Motion, p. 5:7-14.)

The Court finds that Apple establishes overriding interests that justify sealing these materials and the other factors set forth in Rule 2.550 are satisfied. Additionally, Apple submits the necessary documents pursuant to Rule 2.551(b)(1). Thus, Apple's motion to seal portions of the Complaint is GRANTED.

V. CONCLUSION

Based on the foregoing, Apple's motion to seal portions of the Complaint is GRANTED.

The Court will prepare the order.

- oo0oo -

Case Name:

Case No.:

- oo0oo -

Calendar Line 12

Case Name:

Case No.:

- oo0oo -

Calendar Line 13

Case Names:

Case No.:

- oo0oo -